

From: PENNYCOOK, Matthew [mailto:matthew.pennycook.mp@parliament.uk]
Sent: 02 July 2023 20:38
To: Glyn Ellis
Cc: GMVML Directors
Subject: RE: GMV West - Cladding/EWS

Dear Glyn,

Thank you for your email and please accept my apologies for the delay in responding – it is a busy period at present.

I appreciate fully that GMV West leaseholders are frustrated about the pace of remediation works across the development. I can assure you that it is a frustration shared not only with thousands of leaseholders in unsafe buildings across our constituency, but hundreds of thousands across the country.

As you will know, in addition to being the MP for Greenwich and Woolwich, I am also the Shadow Minister of State for Housing and Planning with responsibility for holding the government to account on building safety. I know from closely scrutinising the government's performance in respect of the crisis, that the overall pace of remediation across England is glacial.

Shamefully, Grenfell-style ACM cladding still remains on 40 high-rise buildings, with remediation not even having started on 22 of those. When it comes to the remediation of non-ACM buildings, just 37 buildings have been fully remediated out of the 1,225 that applied for funding from the Building Safety Fund.

In addition, the Department for Levelling-up, Housing and Communities (DLUHC) failed to even process the applications of hundreds of buildings that submitted them to the BSF in good time and waited patiently for a decision to be reached, [in many cases over a period of many years](#).

As a result of the April 2022 [building safety repairs pledge](#) and the subsequent [developer remediation contract](#) (published in draft in July 2022 and in final form in January 2023), a significant number of buildings that had not at that point had an award of funding from the BSF communicated to them (see the attached response I received from the Department at the time) saw their applications terminated with responsibility for remediating life-critical, fire safety defects transferred over to the relevant developer (49 have signed in total).

As such, in many cases we are now seeing those developers carrying out *new* fire risk appraisal of external walls (FRAEW) and assessments of internal defects in accordance with the PAS 9980 methodology that replaced the consolidated advice note withdrawn in January 2022 i.e. essentially starting the process almost from scratch.

While I am supportive of the developer remediation contract on the grounds that developers should pay an appropriate share of remediation costs and reduce the burden on taxpayers as a result, the fact that the government completely changed its approach to the building safety crisis in January 2022 has ultimately led to further remediation delays for many leaseholders in buildings within the scope of the contract, including those on GMV West.

Beyond the material impact of that change of approach on remediation timelines, it is also the case that 'responsible persons' across the country have for many years had to try to navigate an extremely dynamic environment with legislation as well as national policy and guidance changing repeatedly. Even today, a huge number of questions remain unanswered and new ones arise nearly

every week ([see, for example, those associated with the new Responsible Actors Scheme introduced last week to enforce the developer remediation contract](#)).

Given all of the above, it is my considered opinion – based on my detailed understanding of government policy in respect of the building safety crisis, my knowledge of the remediation works required on GMV West, and my own engagement with the efforts undertaken to progress those works – that the Board has handled the process well and that the development is well placed in relation to many other buildings in the constituency as a result.

With regard to the various specific points you put to me:

- There is no doubt that huge uncertainty surrounded the publication of revised Advice Note 14 in December 2018 (if memory serves the original version published in December 2017 related purely to external wall systems incorporating ACM cladding). The revised Advice Note 14 was intended to give building owners clear advice on non-ACM cladding systems, but it instead resulted in a great deal of confusion for many leaseholders across the country. The note was not a legal requirement but provided strong guidance to owners of buildings above 18m to have an up-to-date fire risk assessment, to take “general fire precautions” in their buildings, and to make sure that external wall systems were “safe”. The definition of “safe” was defined as 1) materials that are safely installed and maintained and 2) external wall systems (including cladding and insulation) that contain materials that are of limited combustibility or have achieved the Building Research Establishment’s BR 135 classification (again, if memory serves, it was verified at the time that GMV West had a BR135 in place for all materials). What subsequently became clear was that in the vast majority of cases available desktop information was not sufficient to determine actual risk and buildings required an intrusive inspection to determine what, if any, defects were present. That said, I certainly do not recall building owners/responsible persons in the constituency and beyond rushing en masse to commission intrusive inspections in the period immediately after the revised Advice Note 14 was issued in December 2018 (not least because there were real challenges securing qualified and indemnified people to carry them out). Instead, we witnessed across the country a slow coming to terms with the implications of the new guidance and what it meant for individual buildings and a ramping up of intrusive surveys following the publication of the consolidated advice note in January 2020.
- In relative terms, I certainly recall GMV West being extremely quick off the mark both in terms of commissioning fire risk assessments and registering for the BSF. Leaseholders in other buildings in the constituency that are not RMCs/RTMs often had to wait months for their freeholder/managing agent to even begin the survey/assessment process. I specifically recall on various occasions reaching out to you and other leasehold directors on the Board, as I did with many other RMCs/RTMs and more informal leaseholder groups in affected buildings in the constituency, to offer advice and guidance but on every occasion it was clear that the Board was fully across the detail and was progressing matters to the best of its ability. The requests that were put to me therefore related mostly to the need for clarity on national policy/government cladding remediation schemes rather than more basic support with established processes.
- If memory serves, BSF applications were initially processed by DLUHC on a ‘first come, first served’ basis but that approach was quickly disappplied because it was a ridiculous way of handling the thousands of applications submitted. Thus, I know of some buildings in the constituency that submitted their applications almost immediately in March/April 2020 and failed to secure a decision prior to responsibility transferring to the developer under the

contract and I know of buildings that submitted them relatively late and secured BSF funding awards. There are numerous unanswered questions about how the BSF operated and still operates (for new applicants) in practice. My sense is that the size and complexity of applications were as much, if not more, of a factor in successful awards as application submission dates. Moreover, every building locally that did secure an award then faced significant challenges in signing a Grant Funding Agreement (GFA) with the Department. In short, there are many reasons to believe that DLUHC handled badly the administrative challenges of funding building owners to carry out remediation work via the BSF, rather than the fault lying exclusively with relevant responsible persons (although some certainly did submit incomplete or incorrect information and the process was delayed as a result but that was not the case with GMV West).

- The signing of the developer remediation contract and the forthcoming establishment of the Responsible Actors Scheme as its enforcement mechanism has not led, at least according to the correspondence I receive from constituents and leaseholders further afield, to developers expediting remediation works. Instead, as I intimated above, many developers have suggested they need to carry out new surveys/assessments in accordance with the PAS 9980 methodology (the old ones having been conducted under the consolidated advice note that was withdrawn in January 2022). When it comes to expediting remediation works and protecting leaseholders, much will depend on how the Department enforces the provisions of the contract that has now been signed by 49 developers (with, we are told, more to come). I have some concerns as to whether the Department will be able to do so effectively. For example, as I put to the Minister last week (see Column 11 of Hansard [here](#)), I worry about the fact that the contract only requires participant developers to identify and assess buildings and thereafter undertake any works to fix life-critical fire safety defects as defined by the contract “*as soon as reasonably practicable*”. However, you can rest assured that I will support GMV West leaseholders by robustly holding both the government and your developer to account when it comes to honouring the commitments that have been made.
- Lastly, when it comes to under 11-metre buildings the picture across the country is still entirely unclear. You will recall that in response to pressure that I, among others, applied at the Report Stage of the Building Safety Bill, the then Housing Minister committed from the despatch box to considering buildings for government funding on a case-by-case basis. The government continue to assert that there is no systemic building safety risks associated with under 11 metre buildings. As such, they are now openly asking for specific details of under 11 metre buildings that have defects that might render them unsafe/prevent them from securing an EWS1 form, at which point they will consider whether it meets a threshold (unknown) for support. I don’t believe the Board has any evidence to suggest the defects in the under 11-metre buildings in GMV West are sufficiently serious to attract public funding so I presume you have proceeded to commission a PAS 9980 assessment and remediation works on them (financed via service charges) with a view to securing an EWS1 (B1) certificate at the earliest opportunity. If you’ve done so, you’re ahead of the curve as many buildings are still waiting to see whether the government bring forward a wider under 11-metre scheme (the chances that they do so are almost non-existent in my view).

I hope the above is helpful. As ever, please don’t hesitate to let me know if you have any further questions.

Best wishes,
Matthew



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From: Glyn Ellis

Sent: 25 June 2023 10:08

To: PENNYCOOK, Matthew <matthew.pennycook.mp@parliament.uk>

Cc: GMVML Directors

Subject: GMV West - Cladding/EWS

Hi Matthew,

I hope you are well.

Thank you for your ongoing support and guidance over the years on the cladding scandal and for representing this important topic in parliament to hold the government and developers to account for the benefit of leaseholders in your wider constituency and nationally as well as those in GMV West in particular.

In recent communications with Leaseholders, there have been challenges from some individuals about the pace of progress, as well as comparisons against other buildings, where works appear to have commenced earlier, and suggestions that GMV West is 'behind the curve'. You are aware from our previous exchanges, that the Board shares the immense frustration about the pace of progress of the Building Safety Fund (BSF) applications and subsequent proposed transfer of responsibility to the Developer (GMVL).

Cladding is one of the most complex tasks the Board has had to deal with. Given how many of our leaseholders have been caught up in this scandal there is justified anger that progress is so slow, which we all share. There are many people within GMV West who have outgrown their homes and want to move on for family, work or other reasons, but are unable to do so because the sales market for properties with un-remediated cladding issues is stagnant.

In addition, there are questions whether the Board has done enough and whether GMV West has fallen behind other developments locally or nationally. We would welcome your thoughts on the following topics:

- From 2017 and through to 2019 we led consultations with leaseholders on a 25-year planned maintenance programme, which included a cycle of external redecorations. Condition surveys were completed and the Section 20 process followed before works were instructed to complete the external maintenance on three of our larger blocks. This work was primarily on the wooden window elements but also included repair and decoration of the cladding. The engagements (August 2019) did not include specific cancellation clauses, given the extra cost this would have attracted (we understand in the region of 10-15%). Over three years later, we are now being

challenged that, as AN14 had been issued the works should not have gone ahead. At the time the works were instructed, we had:

- o confirmation that there was no ACM on our buildings
- o confirmed that our buildings had been signed off by Building Control
- o confirmation from the cladding manufacturer 's website that our cladding system met the required BR135 standard.
- o No representations relating to the cladding in response to the Section 20 consultation.

There was a lot of uncertainty around the direction of the regulatory regime for cladding during that period and it wasn't until the consolidated guidance note was published in January 2020 that MHCLG guidance solidified. We responded to this immediately following the BSF announcement in the 2020 budget by instructing intrusive surveys. It would be interesting to get your view on how other developments responded locally and nationally.

- We instructed fire risk surveys as soon as possible, registered our buildings for the BSF within 24 hours of the application form becoming available on 1 June 2020 and met the original BSF deadline for submission of Dec 2020, despite the deadline being extended to June 2021 (as the earlier date was not considered reasonable). We have since engaged extensively with you, official government consultations, the BSF, planners and the Developer. We received BSF stage 1 approval and £5.6m of pre-tender funding, but things then stalled whilst we assume the government tried to move responsibility to the developer pledge and contract that is now signed. Following the developer pledge we have instructed the PAS 9980 surveys required by the Developer with testing in progress and reports due by the end of August. Some leaseholders are now suggesting that the BSF was being processed on a 'first come, first served' basis, which we do not believe to be accurate, and also that because we submitted close to the original deadline we 'missed out' and that 'most developments are remediated'. We note that properties with the higher risk ACM material may have, quite rightly, been prioritised through a separate ACM fund. Can you provide a view on how we compare to other non-ACM cladding blocks in the borough, London and nationally? Are there any lessons that you suggest the Board can learn from this?
- Whilst we have not received formal confirmation from the BSF that our remediation work is being transferred, we are clearly going down the developer pledge route. This will require key legal discussions on the contract between the Board and the Developer, need engagement to push planners to accept alternative low maintenance materials and depend on potential Remediation Order processes to be initiated with the Developer for items not covered by the pledge. It would be good to get your views on how this is likely to progress and what actions the Board may need to consider to minimise risk for leaseholders and to minimise further delay?

Thank you for your ongoing guidance, support for leaseholders of GMV West and counsel over the years on this topic and others.

Regards

Glyn

Glyn Ellis

Director, GMV Management Limited

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